was in the vices of old governments, she had some, incident to her own new situation: individuals had been victims to the oppression of states.

These doctrines are moreover justified: 1st. By the relation in which the states stand to the federal government: 2d. By the law of nations, on the subject of suing sovereigns: and 3d. They are not weakened by any supposed embarrassment attending the mode of executing a decree against a state.

1st. I acknowledge, and shall always contend, that the states are sovereignties. But with the free will, arising from absolute independence, they might combine in government for their own happiness. Hence sprang the confederation; under which, indeed, the states retained their exemption from the forensic jurisdiction of each other, and, except under a peculiar modification, of the United States themselves. Nor could this be otherwise; since such a jurisdiction was nowhere (according to the language of that instrument) *expressly* delegated. This government of supplication cried aloud for its own reform; and the public mind of America decided, that it must perish of itself, and that the Union would be thrown into jeopardy, unless the energy of the general system should be increased. Then it was, the present constitution produced a new order of things. It derives its origin immediately from the people; and the people individually are, under certain limitations, subject to the legislative, executive and judicial authorities thereby established. The states are, in fact, assemblages of these individuals who are liable to process. The limitations which the federal government is admitted to impose upon their powers, are diminutions of sovereignty, at least, equal to the making of them defendants. It is not pretended, however, to deduce from these arguments alone, the amenability of states to judicial cognisance; but the result is, that there is nothing in the nature of sovereignties, combined as those of America are, to prevent the words of the constitution, if they naturally mean what I have asserted, from receiving an easy and usual construction. But pursue the idea a step further; and trace one, out of a multitude of examples, in which the general government may be convulsed to its centre without this judicial power. If a state shall injure an individual of another state, the latter must protect him by a remonstrance. What if this be ineffectual? To stop there, would cancel his allegiance; one
*424] state cannot sue another for such a cause; acquiescence is not to *be believed. The crest of war is next raised; the federal head cannot remain unmoved, amidst these shocks to the public harmony. Ought then a *necessity* to be created for drawing out the general force, on an occasion so replete with horror? Is not an adjustment by a judicial form far preferable? Are not peace and concord among the states, two of the greatest ends of the constitution? To be consistent, the opponents of my principles must say, that a state may not be sued by a foreigner. What? Shall the tranquillity of our country be at the mercy of every state? Or, if it be allowed, that a state may be sued by a foreigner, why, in the scale of reason, may not the measure be the same, when the citizen of another state is the complainant?

Nor is the history of confederacies wholly deficient in analogy; although a very strict one is scarcely to be expected. A parade of deep research into the Amphictyonic Council, or the Achæan league, would be fruitless, from the dearth of historical monuments. With the best lights, they would probably be found, not to be positively identical with our union. So little did they approach to a national government, that they might well be destitute